

HOUSE No. 1751

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Hogan, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning a right of publicity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kathleen Erica Johnson</i>	<i>6 Edson Street, Stow</i>	<i>1/16/2025</i>

HOUSE No. 1751

By Representative Hogan of Stow (by request), a petition (accompanied by bill, House, No. 1751) of Kathleen Erica Johnson relative to a right of publicity. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning a right of publicity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Definitions

2 As used in this act and sections 2 through 8, inclusive:

3 "Name" refers to the actual or assumed name of a living or deceased individual used to
4 identify that individual.

5 "Persona" means the name, voice, distinctive mannerisms and gestures, signature,
6 photograph, or likeness of an individual, or any element thereof.

7 "Right of publicity" means the property right in an individual's persona for a commercial
8 or fundraising purpose.

9 Section 2. Right of Publicity

10 Each individual shall have a right of publicity in their persona, which shall be freely
11 transferable, assignable, and licensable by means of inter vivos or testamentary transfer,

including by will, trust, contract, or other permissible mechanisms. This right shall survive the individual's death and shall apply regardless of whether the right was exploited during the individual's lifetime.

Section 3. Unauthorized Use Prohibited

No person may use any aspect of an individual's right of publicity for the following purposes without prior written consent of the individual or their authorized representative during their lifetime or for seventy years after their death:

For commercial purposes, including product or service advertising.

For fundraising or soliciting donations.

To digitally or otherwise alter the individual's persona in a manner that:

Causes the individual to appear to say or do things they did not consent to, or

Places the individual in a false context or situation.

Unauthorized use constitutes infringement, regardless of whether the use is for profit or nonprofit purposes.

Section 4. Civil Actions

(a) The following parties may bring a civil action for violations of this act:

Owners of the right of publicity.

Licensees with express written authorization.

Transferees of the right of publicity.

(b) Before initiating an action, partial owners must notify others with ownership interests and provide an opportunity to object. Notification may be delivered by mail or published in a newspaper with general circulation in the municipality where the individual resides or, for deceased individuals, where their estate was probated.

(c) An objection must be filed within 20 days of mailed notice or 60 days of published notice. If no objection is made, the right to object is waived.

(d) Civil actions are prohibited if parties collectively owning more than 50% of the right of publicity object.

(e) Partial owners initiating an action must account for recoveries to other interest holders, less reasonable attorney's fees and costs.

Section 5. Remedies and Damages

(a) Massachusetts Superior Courts may issue injunctive relief, including temporary restraining orders and permanent injunctions.

(b) Violators are liable for the greater of \$2,000 or actual damages, plus any profits directly attributable to the infringement. Statutory damages may consider a single act of infringement as one violation, regardless of the number of reproductions or distributions.

(c) Courts may impound materials made or used in violation of this act and order their destruction upon final judgment.

(d) Courts may award prevailing parties reasonable attorney's fees and litigation costs.

Section 6. Exceptions

51 The following uses are exempt from this act:

52 Bona fide news or public affairs reporting.

53 Portrayals of public officials or political candidates, unless for commercial purposes
54 without consent.

55 Reporting of public interest events or topics.

56 Original works of fine art.

57 Literary works, theatrical works, and similar creative expressions, unless electronically or
58 digitally altered to distort consent.

59 Truthful identification of authors or performers.

60 Promotional material for exempt works under this section.

61 Section 7. Jurisdiction

62 This act applies to all acts occurring in the Commonwealth of Massachusetts, regardless
63 of the individual's domicile, residence, or citizenship.

64 Section 8. Additional Rights

65 The rights and remedies provided by this act are cumulative and do not preempt other
66 rights or remedies available under Massachusetts law.

67 Section 9.

68 This bill shall take effect upon passage